

FEDERAL MARITIME COMMISSION

Docket Nos. 16-01, 16-07, 16-10 and 16-11

IN RE VEHICLE CARRIER SERVICES

**RESPONDENTS' CONSOLIDATED STATEMENT
IN LIEU OF A RESPONSE TO THE *AMICUS* BRIEF**

Respondents Wallenius Wilhelmsen Logistics AS and Wallenius Wilhelmsen Logistics Americas LLC, Nippon Yusen Kabushiki Kaisha and NYK Line (North America) Inc.; EUKOR Car Carriers Inc.; Compañía Sud Americana de Vapores S.A. and CSAV Agency North America, LLC; Höegh Autoliners Holdings AS, Höegh Autoliners AS, Höegh Autoliners, Inc., Autotrans AS and Alliance Navigation LLC; Mitsui O.S.K. Lines, Ltd., Mitsui O.S.K. Bulk Shipping (USA) Inc., World Logistics Service (U.S.A.) Inc. and Nissan Motor Car Carrier Co., Ltd.; and Kawasaki Kisen Kaisha, Ltd., and “K” Line America, Inc. (collectively, “respondents”), by and through their undersigned counsel, submit the following consolidated statement in lieu of a response to the *amicus* brief authorized by the Commission’s August 30, 2018 order granting motion for leave to file an *amicus* brief (the “August 30, 2018 order”).

At the outset, respondents note that the May 7, 2018 initial decision granting in part and denying in part respondents’ motion to dismiss and supplemental motion to dismiss (the “Initial Decision”) properly considered and rejected the arguments now advanced by *amici*. By way of further response to the *amicus* brief, respondents rely on the arguments presented at pages 4-25 of their August 21, 2018 consolidated reply to complainants’ appeal from the Initial Decision.

As respondents' August 21, 2018 reply makes clear, complainants cannot maintain these actions on a class basis because (1) the Commission lacks statutory authority either to (a) hear class or representative actions, or (b) bind absent class members; (2) the Commission's rules do not authorize class actions; and (3) it is not sound administrative practice to entertain class actions or bind absent class members in these proceedings. Respondents' August 21, 2018 reply conclusively rebuts what complainants have argued -- and *amici* repeat -- in respect of the propriety of applying class action practices before the Commission. We add only the following.

Amici assert that "[a]nother non-Article III tribunal that has benefitted from informal aggregation is the Vaccine Court, which relies on its general authority to 'determine the format for taking evidence[,] . . . hearing argument[,] and to 'apply [its] expertise' from one case to another." Am. Br. at 12 (citation omitted). *Amici* then argue that, "when faced with large numbers of claims for compensation, the Vaccine Court developed 'omnibus proceedings' to efficiently process claims involving the same injury." *Ibid.* (quoting *Cedillo v. Sec'y of Health & Human Servs.*, No. 98-916V, 2009 U.S. Claims LEXIS 146 (Fed. Cl. Feb. 12, 2009), *aff'd*, 89 Fed. Cl. 158 (2009), *aff'd*, 617 F.3d 1328 (Fed. Cir. 2010)). Those assertions and arguments are both misleading and in error.

The very case on which *amici* rely in makes clear that "the use of an 'omnibus proceeding'" does not change the fact that each individual petition is decided individually, on its own merits[,] and that "[t]he Vaccine Act contains no provision for 'class action' suits, or for any type of adjudication of more than one petition at a time." *Cedillo*, No. 98-916V, 2009 U.S. Claims LEXIS 1246, at 37. *See id.* at 3-4, 24-25 (describing that, under National Vaccine Injury Compensation Program, each individual petitioner must prove entitlement to award, and highlighting that, in order to determine general causation injury only, Office of Special Master

and parties developed Omnibus Autism Proceeding requiring “test case approach” in order to determine -- only -- general causation between vaccine and claimed injury and not to determine principal issues of liability and/or damages).

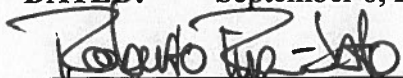
Cedillo is entirely consistent with the reasoning of the Initial Decision in respect of the Shipping Act. Unlike *amici*’s sweeping assertions, *Cedillo* emphasized that “[a]n ‘omnibus proceeding,’ rather, is simply a device to *organize the presentation of evidence*, in cases with common ‘general causation’ issues, in order to avoid duplication of effort[.]” *id.* at *38 (italics in original), and not -- as complainants and *amici* would have it -- a trap door through which class action treatment surreptitiously can be imported wholesale into administrative proceedings.

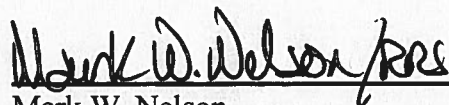
To the extent, then, that *amici* -- and, through them, complainants -- seek to assert that an administrative agency may use “informal aggregation” procedures to hear class actions and bind absent class members based on the experience of the Vaccine Court, that representation is misleading and wrong.

For the foregoing authority, arguments and reasons, respondents respectfully pray that complainants’ appeal be denied, the Initial Decision be adopted by the Commission, and that the Commission issue such other and further relief as it deems just and proper consistent with this prayer for relief.

Respectfully submitted,

DATED: September 6, 2018

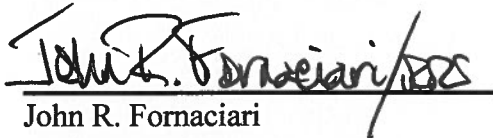

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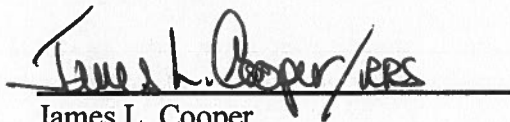
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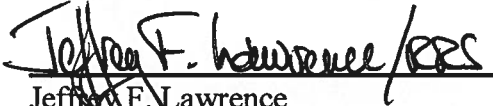


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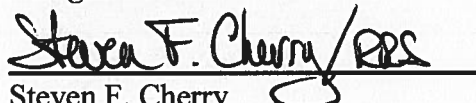
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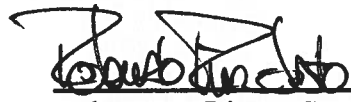
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IV. CERTIFICATE OF SERVICE.

I hereby certify that, on September 6, 2018, a true and correct copy of the foregoing respondents' consolidated statement in lieu of a response to the *amicus* brief authorized by the Commission's August 30, 2018 order granting motion for leave to file an *amicus* brief was filed electronically with the Secretary of the Federal Maritime Commission, eight paper copies of the same were sent to the Secretary of the Federal Maritime Commission via overnight courier service, and electronic copies thereof were sent to all lead/liaison counsel for complainants identified in the Commission's March 16, 2017 order.

DATED: September 6, 2018



Roberto A. Rivera-Soto